

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & CO., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent*.

DOCKET NO. 24-01

Served: September 5, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

AMENDED SCHEDULING ORDER

On August 30, 2024, the parties filed a Joint Status Report and Proposed Schedule (“JSR”), updating their progress on discovery and proposing an amended schedule as directed in the August 20, 2024, Order on Joint Status Report and Scheduling.

The parties propose a reasonable schedule given the status of discovery at this point in the proceeding. While the JSR discusses the scheduling of fact and expert depositions, the parties did not propose a deadline by which those depositions must be completed, so a date corresponding to the close of discovery has been included below. Accordingly, the parties are hereby **ORDERED** to follow this schedule:

September 9, 2024	Complainant’s revised responses to Respondent’s interrogatories and requests for admission due.
September 9, 2024	Respondent’s production of documents responsive to RFD6 due.
September 9, 2024	Last day to serve supplemental written discovery requests.
September 23, 2024	Parties serve objections and responses to supplemental written discovery requests.
October 18, 2024	Complete depositions of fact and expert witnesses.
October 18, 2024	Close of discovery.
November 8, 2024	Complainant’s brief, proposed findings of fact, and appendix due.
December 6, 2024	Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix due.

December 20, 2024 Complainant's reply brief and responses to proposed findings of fact due.

The parties are reminded to follow the instructions in the March 8, 2024, Scheduling Order, and repeated below, for the filing of briefs, proposed findings of fact, responses to proposed findings of fact, and appendices. Due to the condensed period from filing of briefs and supporting documents to the due date of the decision, there is no time in the schedule to allow for corrected filings. All submissions must include page numbers, including on exhibits. Certain instructions are emphasized below to draw attention to common issues with parties' submissions.

The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e). **The brief should cite to evidence in the appendix using the required sequential numbers (see below).**
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to **a single factual proposition**. Each factual proposition **shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact, e.g., a page number in the appendix**. The parties shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document **shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact**. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;

b. The appendix should be in one PDF document, if practicable. **The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;**

c. **The appendix must begin with a table of contents identifying the page at which each individual document begins, and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;**

d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and

e. **The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix.** For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

Scheduling Order at 3-4 (emphases added).

Additionally, parties must follow the instructions in the Initial Order, including the requirements for submitting confidential information. Initial Order at page 6.



Linda S. Harris Crovella
Administrative Law Judge